

24CV02918 Maria Gonzalez, as guardian ad litem for Jacob Garcia v. Antonio Haro and Diana Haro

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-07-15

Motion: Plaintiffs' Petition for Approval of Compromise of Claim of Jacob Garcia, a Minor

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Tentative Ruling: Maria Gonzalez, as guardian ad litem for Jacob Garcia v. Antonio Haro and Diana Haro

Case Number

24CV02918

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 07/15/2026 - 10:00

Nature of Proceedings

Plaintiffs' Petition for Approval of Compromise of Claim of Jacob Garcia, a Minor

Tentative Ruling

For Plaintiff Jacob Garcia, a Minor by and through his Guardian Ad Litem, Maria Gonzalez: Bradford D. Brown

For Defendants Antonio Haro and Diana Haro: Dave Hitch, Law Offices of Richardson Fair & Cohen

RULING

For the reasons set forth herein, the motion for approval of compromise of claim of Jacob Garcia, a minor, is granted as modified:

The Court approves gross settlement in the amount of \$75,000.00, Medi-Cal reimbursement of \$212.34, \$2,993.75 in expenses, and attorneys' fees in the reduced amount of \$25,000.00. The balance of \$46,793.91 is to be placed in the blocked account at US Bank for the benefit of Jacob Garcia.

Plaintiff shall file a revised Order (MC-351), and a revised Order to Deposit Funds in Blocked Account (MC-355), that conforms to this order, no later than July 22, 2026. Plaintiff shall file acknowledgement from US Bank of the depositing of the funds, and receipt of the Order to Deposit Funds in Blocked Account, within 15 days of the deposit.

Background

By way of judicial council form complaint, filed on May 24, 2024, Plaintiff Jacob Garcia (Garcia), a Minor by and through his Guardian Ad Litem, Maria Gonzalez (Gonzalez), alleges: On June 3, 2023, at 4888 Kodiak Ave, Santa Barbara, Defendants Antonio and Diana Haro's (collectively "Defendants") dog bit Garcia on the nose. (Complaint, ¶ GN-1.)

On July 29, 2024, Defendants answered the complaint with a general denial and 16 affirmative defenses.

On July 23, 2025, Garcia filed a notice of conditional settlement of entire case.

Gonzalez and Garcia now move for approval of the compromise of the action.

Analysis

"The requirements that a guardian ad litem be appointed and that the proposed compromise of a minor's claim be approved by the trial Court exist to protect the best interests of the minor." (Pearson v. Superior Court (2012) 202 Cal.App.4th 1333, 1338.)

"While the guardian ad litem has the power to assent to procedural steps that will facilitate a determination of the ward's case [citation], the guardian ad litem's authority is that of " "an agent with limited powers." ' [Citation.]' [Citation.] For example, when a guardian ad litem believes that settling a case is in the ward's best interests, that decision requires Court approval. (Code Civ. Proc., 372.) The Court has a duty to ensure that the ward's rights are protected by the guardian ad litem." (McClintock v. West (2013) 219 Cal.App.4th 540, 549.)

"A petition for Court approval of a compromise of, or a covenant not to sue or enforce judgment on, a minor's disputed claim; a compromise or settlement of a pending action or proceeding to which a minor or person with a disability is a party; or the disposition of the proceeds of a judgment for a minor or person with a disability under Probate Code sections 3500 and 3600-3613 or Code of Civil Procedure section 372 must be verified by the petitioner and must contain a full disclosure of all information that has any bearing on the reasonableness of the compromise, covenant, settlement, or disposition. Except as provided in rule 7.950.5, the petition must be submitted on a completed Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person With a Disability (form MC-350)." (Cal. Rules of Court, rule 7.950.)

"If the petitioner has been represented or assisted by an attorney in preparing the petition for approval of the compromise of the claim or in any other respect with regard to the claim, the petition must disclose the following information:

"(1) The name, state bar number, law firm, if any, and business address of the attorney;

“(2) Whether the attorney became involved with the petition, directly or indirectly, at the instance of any party against whom the claim is asserted or of any party’s insurance carrier;

“(3) Whether the attorney represents or is employed by any other party or any insurance carrier involved in the matter;

“(4) Whether the attorney has received any attorney’s fees or other compensation for services provided in connection with the claim giving rise to the petition or with the preparation of the petition, and, if so, the amounts and the identity of the person who paid the fees or other compensation;

“(5) If the attorney has not received any attorney’s fees or other compensation for services provided in connection with the claim giving rise to the petition or with the preparation of the petition, whether the attorney expects to receive any fees or other compensation for these services, and, if so, the amounts and the identity of the person who is expected to pay the fees or other compensation; and

“(6) The terms of any agreement between the petitioner and the attorney.” (Cal. Rules of Court, rule 7.951.)

Plaintiff has submitted the following information, on the required judicial council form MC-350 (Petition), signed by Hernandez under penalty of perjury:

Garcia is 7 years old with a date of birth of July 3, 2018. (Petition, ¶ 2.)

On June 3, 2023, at 10:00 p.m., at 4888 Kodiak Avenue, Santa Barbara, Garcia attended a get together with his mother at Defendants’ home when the Defendants’ mixed-breed dog bit Garcia on the nose. (Petition, ¶¶ 4, 5.)

Garcia sustained a one-centimeter laceration requiring an emergency visit with one suture and one follow-up visit with a plastic surgeon.. (Petition, ¶ 6.)

Garcia was taken to Santa Barbara Cottage Hospital where he received an x-ray of the nose to check for foreign bodies (negative), and the laceration was cleaned and sutured. Garcia had one follow-up visit with Plaintiff’s expert witness plastic surgeon. There were no other visits. (Petition, ¶ 7.)

Garcia has recovered completely from the effects of his injuries and there are no permanent injuries. (Petition, ¶ 8.)

The terms of the settlement are that Defendants will pay \$75,000.00 in settlement of the claim, and no payments will be made to others for claims arising out of the subject accident. (Petition, ¶¶ 10, 11.)

Garcia’s medical expenses before any reductions total \$212.34. Of that amount, total medical expenses paid total \$212.34, reductions total \$0, and medical expenses to be paid from settlement proceeds total \$212.34. (Petition, ¶ 12, subd. (a).) Medi-Cal paid \$212.34 and is to be reimbursed that amount from the settlement. (Petition, ¶ 12, subd. (b)(4).

Garcia’s attorney requests that the Court approve \$30,000.00 (40 percent) from Garcia’s settlement as attorney fees. (Petition, ¶¶ 13, subd. (a), 16 & Proposed Order ¶ 8.) [Note: There is a typographical error at ¶ 13, subd. (a) that states the amount of attorney’s fees sought is \$20,831.25. This is obviously an error as in multiple other sections of the petition, including the declaration of counsel and the fee agreement, attorney’s fees of \$30,000.00 is what is being sought.] Garcia’s attorneys claim reasonably incurred costs advanced in the amount of \$2,993.75, and requests that that amount be reimbursed from the settlement proceeds. (Petition, ¶ 13, subd. (b).)

The net balance of settlement proceeds to be paid to Garcia totals \$41,793.91. (Petition, ¶ 15.)

Garcia's attorney provides all the information about himself that is required by California Rules of Court, rule 7.951. (Petition, ¶ 17.)

Garcia, through his guardian ad litem Gonzalez, requests that the balance of his settlement, after the above disbursements, be deposited in an insured account with US Bank, located at 20 East Carrillo Street, Santa Barbara. (Petitions, ¶ 18, subd. (b) & Proposed Order, ¶ 9.)

The Court has reviewed the petition, along with the attachments, and finds that the settlement is generally fair, reasonable, and in the best interests of the minor Plaintiff.

However, the Court intends on reducing the amount of attorney's fees from the requested 40 percent to a reasonable 33 1/3 percent of the total amount recovered, or \$25,000.00.

The California Rules of Court require that the Court must use a reasonable fee standard when approving and allowing the amount of attorney's fees payable from money or property paid or to be paid for the benefit of a minor. (Cal. Rules of Court, rule 7.955(a)(1).) The Court must consider the terms of any representation agreement made between the attorney and the minor's representative. In determining a reasonable attorney's fee, the Court may consider the nonexclusive list of factors in the rule of Court. (Cal. Rules of Court, rule 7.955(b).)

Three of the nonexclusive factors for the Court to consider in determining a reasonable attorney's fee are:

"The amount of the fee in proportion to the value of the services performed." (Cal. Rules of Court rule 7.955(b)(2).);

"The novelty and difficulty of the questions involved and the skill required to perform the legal services properly." (Cal. Rules of Court rule 7.955 (b)(3); and

"The time and labor required." (Cal. Rules of Court rule 7.955(b)(8).)

While the Court acknowledges the hard work and excellent representation provided to Garcia by his attorney, this was not a particularly contentious or complicated case. Based on the declaration of Plaintiff's counsel, there was limited discovery and limited litigation in general. The Court does not find that 40 percent is justified. The Court will reduce that amount to 33 1/3 percent. As such the Court will approve gross settlement in the amount of \$75,000.00; Medi-Cal reimbursement of \$212.34; reimbursement of \$2,993.75 in expenses and; \$25,000.00 in attorney's fees. This leaves a balance of \$46,793.91 to be placed in the blocked account for the benefit of Garcia.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

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